NATIONAL DRUG, SUBSTANCE ABUSE CONTROL AND ENFORCEMENT AGENCY BILL, 2025

EXPLANATORY MEMORANDUM

This Bill seeks to provide for the establishment of an Agency that will be mandated to enforce laws that deal with drug trafficking and substance abuse. In addition, the Agency's responsibility will include coordinating access to support services, such as vocational training and drug rehabilitation programmes, to support individual recovery and development.

In more detail the individual clauses of the Bill provide as follows:

Clause 1

This clause sets out the short title of the Bill and the date of commencement.

Clause 2

It provides clear and essential definitions for salient word used in the Bill to prevent ambiguity and ensure accurate interpretation of the provisions.

Clause 3

The clause establishes a body called the National Drug and Substance Abuse Control and Enforcement Agency, which is a legal entity capable of suing and being sued, and performing all necessary actions to carry out its functions under the Act.

Clause 4

The clause outlines the agency's functions, which are divided into two main divisions: the Social Services Intervention Division and the Enforcement Division. The Social Services Division focuses on demand reduction, offering support services, conducting research, and educating the public. The Enforcement Division focuses on supply reduction, investigating and prosecuting drug-related offenses, and collaborating with law enforcement agencies.

Clause 5

This clause establishes the divisions of the Agency and their mandates.

Clause 6

The clause states that the bill will establish an Advisory Board for the Agency, consisting of a Director General and representatives from various ministries. The quorum for the board is eight members. Board members will serve a four-year term, with the possibility of reappointment for one additional term. The board will also ensure gender equality in its composition.

Clause 7

The clause provides for the appointment of the Director General by the President and outlines his or her functions, which include developing and implementing national drug enforcement and control strategies, managing budgets, administering prevention programs, coordinating multinational efforts, and collaborating with interagency partners.

SOCIAL SERVICE INTERVENTION DIVISION

Clause 8

The clause provides the appointment of the Deputy Director General Social by the President and it also outlines his or her functions, which include implementing strategies, overseeing the coordination of social services, including the provision of rehabilitation, and advising the Minister.

Clause 9

The clause states that professional staff of the Social Division will include anti-drug officers seconded from the public service. The Deputy Director General may, with the governing body's agreement, also second staff from other statutory bodies as intervention officers.

Clause 10

The clause provides for establishment of demand side reduction programs to prevent drug abuse, raise awareness, and preserve affected individuals' family structures.

Clause 11

It outlines the appointment, powers, and functions of monitors under the Bill. The Director General in consultation with the Deputy Director-General of the Social Division may appoint monitors from the Division's professional staff, and each monitor must carry a certificate of appointment. Monitors are responsible for on-site compliance checks related to the implementation of demand side reduction programmes by government departments or stakeholders. They may enter premises, question employees, inspect and copy documents, and even take possession of records relevant to monitoring. All materials collected must only be retained as long as necessary for legal or investigative purposes.

Clause 12

The clause defines key terms for demand reduction programs and requires the Social Division to assess each program's adequacy, with the Deputy Director empowered to set appropriate conditions.

Clause 13

The Deputy Director General Social shall maintain a public register of certificates, detailing programs, obligated persons, dates, conditions, and any changes or cancellations.

Clause 14

The Social Division must develop guidelines for community wellness services targeting vulnerable groups, in consultation with stakeholders, and establish national standards and provincial strategies, with funding and community involvement.

ENFORCEMENT DIVISION

Clause 15

It provides for the appointment of the DDG (Enforcement) by the President. It also outlines the roles and responsibilities of the Director-General and DDG (Enforcement). Mainly the Director General is responsible for developing and implementing enforcement strategies, leading drug enforcement operations, and overseeing compliance with drug laws and regulations.

Clause 16

The clause discusses the composition of the staff of the Enforcement Division. The Deputy Director-General Enforcement may select Police Service members to join the Enforcement Division with the approval of the Board and the Commissioner-General of Police. The clause also outlines the conditions for secondment, including the negotiation of a standard secondment contract and rotation requirements. Additionally, members of other Security Services mentioned in section 207 of the Constitution may also be seconded to the Enforcement Division, with similar conditions applying. The question of what happens when the investigations of the Agency and the Police Service overlap is addressed in clause 16(4).

Clause 17

This clause allows the assignment of prosecutors to the Agency from National Prosecuting Authority to prosecute drug related offences. The modalities of such assignment will be spelt out in a memorandum of agreement between the Director-General and the Prosecutor General.

Clause 18

This clause allows the Agency to expand the definition of "harmful drug" in consultation with MCAZ and specify additional substances as harmful drugs by notice in the *Gazette*, subject to Ministerial approval and publication in the *Gazette*.

Clause 19

The clause states that the Minister, with the responsible Minister's concurrence, may issue a statutory instrument prescribing standard scale of fines and monetary penalties. The standard scale to be created under this Bill will be more deterrent than the standard scale that applies to other Acts.

FINANCIAL AND GENERAL PROVISIONS

Clause 20

This Clause outlines the sources of funding for the Agency. The Agency will use these funds to fulfil its functions while adhering to public finance management principle.

Clause 21

The clause provides for the Agency's accounts and the appointment of an internal auditor. The agency must prepare and submit annual financial statements to the Minister.

Clause 22

The clause states that the Agency shall be audited by the Auditor General and any person who refuses to provide information required for the purposes of an audit or provides false information shall be liable to a fine.

Clause 24

The clause provides for joint meetings between the social and enforcement divisions chaired by the Director General to enhance coordination. Such meetings enable the agency to develop a strategic plan to combat harmful drugs and the abuse of drugs and substances, reviewed annually and approved by the Minister.

Clause 25

This clause allows the Agency to invite experts or individuals with special knowledge or experience to participate in joint meetings of Agency on a non-voting basis.

Clause 26

This clause is about decentralisation, which means the Agency will be setting up smaller offices in different provinces and districts to better serve local communities.

Clause 27

This clause provides that Public Service Commission in consultation with the Director General shall employ administrative staff for both divisions as needed for efficient operations.

Clause 28

This clause states that the Public Service Commission can hire professional members under contract for a fixed term, with conditions similar to the seconded employees.

Clause 29

This clause provides for serving allowances for seconded stuff in addition to the remuneration they earn.

Clause 30

The clause provides for immunity. Any member of the Agency shall in the exercise of his or her duties not be held liable for any action in respect of any act done in good faith and without gross negligence.

Clause 31

This clause outlines the Minister's authority to make regulations after consulting the Agency for the better administration of the Bill and other purposes.

CONSEQUENTIAL AMENDMENTS INTRODUCED BY THE BILL

Clause 32

Section 37A of Zimbabwe's Money Laundering and Proceeds of Crime Act defines key terms used in the enforcement of Unexplained Wealth Orders (UWOs), which are aimed at identifying and recovering assets suspected to be unlawfully acquired. It outlines who can enforce these orders, including NPA, and ZIMRA and clarifies concepts like "holding" property (including ownership, control, or beneficial interest) and the "response period" given by the court to comply with a UWO. Clause 32 further amends this section by adding a new paragraph (c) to include the Enforcement Division of the National Drug, Substance Abuse Control and Enforcement Agency as one of the empowered entities, reinforcing the legal framework to deter corruption fuelled by the illegal drug trafficking and support asset recovery efforts.

Clause 33

Further expands the definition of dangerous drug in order to cover harmful drugs as spelt out in this Bill. This clause also outlines presumptions related to dangerous drugs in the Criminal Law (Codification and Reform) Act [*Chapter 9:23*].

NATIONAL DRUG, SUBSTANCE ABUSE CONTROL AND ENFORCEMENT AGENCY BILL, 2025

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BILL

To provide for the establishment, functions and funds of a National Drug and Substance Abuse Control and Enforcement Agency; and to provide for the matters connected with or incidental to the foregoing.

WHEREAS drug and substance abuse poses a grave internal national security threat, in that the profits from the trafficking in harmful drugs and substances enables the growth of gangs, cartels and other organised criminal groups, who in turn deploy their ill-gotten wealth to purchase the instrumentalities of crime, including weapons, disrupt the lawful functioning of the financial system and market economy, and corrupt civilian and non-civilian public servants and office holders in the executive, judicial and legislative branches of Government and its subsidiary organs and agencies;

AND WHEREAS drug and substance abuse is also a public health threat that requires comprehensive harm reduction, treatment and rehabilitation services to be availed for the social reintegration of persons who through the abuse of drugs and other substances have suffered physical and mental harm;

AND WHEREAS drug and substance abuse is also a social crisis with sociological implications for the societal stability, health and well-being of the country's populations;

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AND WHEREAS drug and substance abuse requires prioritising, prevention interventions (including drug interdiction efforts) and enforcement of relevant anti-drugs legislation, the arrest and prosecution of drug dealers and traffickers, and disruption of criminal cartels to protect the health and well-being of individuals, particularly vulnerable and at-risk populations;

AND WHEREAS there is need for a deliberate community engagement and reintegration efforts that foster community support for individuals affected by drug and substance abuse to facilitate their recovery and reintegration into society;

NOW THEREFORE, be it enacted by the President and the Parliament of Zimbabwe as follows—

PART I

Preliminary

1 Short title and date of commencement

(1) This Act may be cited as the National Drug and Substance Abuse Control and Enforcement Agency Bill, 2025.

(2) This Act shall come into operation on a date to be fixed by the President by notice in a statutory instrument.

2 Interpretation

In this Act—

"abuse", in relation any drug or substance, means (depending on the context) the consumption of any harmful drug or substance, or the misuse of any drug or substance not in itself harmful;

"Agency" means; National Drug and Substance Abuse Control and Enforcement Agency established by section 3;

"Board" means National Drug and Substance Abuse Control and Enforcement Agency Advisory Board established by section 6;

"demand side reduction" means any combination of actions, policies, measures, laws and strategies aimed at decreasing the demand for harmful drugs or substances;

"DDG (Social)" means the Deputy Director General of the Social Division appointed in terms of section 8;

"DDG (Enforcement)" means the Deputy Director General of the Enforcement Division appointed in terms of section 15;

"Director General" or "DG" means the Director-General of the Agency appointed in terms of section 7;

"Division", in relation to a Division of the Agency, means the Social Division or the Enforcement Division;

"divisional meeting" means a meeting of the management team of a Division of the Agency convened by the Deputy Director-General of that Division;

"drug or substance" means any drug or substance whose abuse, consumption, production, distribution or trafficking the Agency is, by virtue of section 4, empowered to monitor, control or suppress;

"harmful drug or substance" means any drug or substance whatsoever whose consumption by human beings is in itself harmful, and includes a harmful liquid as defined in the Harmful Liquids Act [*Chapter 9:10*];

"harmful drug and substance abuse enforcement law" means any of the laws specified in section 19 (2)(a) to (e);

"harmful drug and substance enforcement officer" means a police officer or other security service member seconded to the service of the Enforcement Division in terms of section 16;

"Enforcement Division" means the Enforcement Division of the Agency established under Part IV;

"joint meeting" means a joint meeting of the management teams of both Divisions of the Agency convened by the Director-General of the Agency in terms of section 24(2);

"learning institution" means a school, technical college, university, university college, or similar institution or place at which primary, secondary or tertiary education is offered;

"member" means a member of the Board or a committee, as the case may be, and includes the Chairperson and the Vice-Chairperson thereof;

"Minister" means the Minister responsible for Home Affairs or any Minister to whom the President may from time to time assign the administration of this Act;

"MDA" means a Ministry, department or agency of the executive branch of the government;

"MDAs' demand side reduction programme" means a programme established in terms of section 10 for the prevention of the abuse of drugs and substances and the consumption of harmful drugs and substances among members and employees of MDAs and relevant stakeholders;

"monitor" means a monitor appointed in terms of section 11;

"national plan" means the plan for the national implementation of actions, policies, measures, laws and strategies to address the abuse of drugs and substances and the consumption of harmful drugs and substances, which plan speaks to the following pillars—

(a) supply reduction;

(b) demand reduction;

(c) harm reduction, treatment and rehabilitation;

(d) community reintegration;

(e) policy implementation and legal enforcement;

(f) media and communication;

(g) resource mobilization and economic strengthening;

"obligated person" means any MDA, statutory body, constitutional commission, traditional leader, employer (whether corporate or individual) of more than

twenty-five (25) employees, local authority with respect to its employees, and learning institution;

"precursor", in relation to a harmful drug or substance, means a substance that participates in a chemical reaction that produces the harmful drug or substance in question;

"professional staff", with reference to any individual member thereof, means a person having expertise in managing the public health or social welfare impacts of the abuse of harmful drugs or substances, or having the relevant competencies, skills, experience or qualifications in the same;

"relevant MDAs" means the Ministries (and related departments and agencies) responsible for health, the Public Service, labour, social welfare, lands, youth, women, information, education, justice, arts and culture, provincial and local government, correctional services and sport;

"relevant stakeholder", in relation to a national plan, means any person who, not being a member or employee of an MDA, or an obligated person, works under contract for, or otherwise does business on a regular basis with, an MDA, whether or not as a supplier or goods and services to the MDA in question;

"Social Division" means the Social Services Intervention Division of the Agency established under Part III;

"stakeholder plan" means a plan by an obligated person for the implementation of actions, policies, measures, laws and strategies to address drug and substance abuse at the workplace or other space within the obligated person's sphere of responsibility;

"statutory body" means—

(a) any Commission established by this Constitution;

(b) anybody corporate established directly by or under any Act of Parliament for special purposes specified in that Act, the membership of which consists wholly or mainly of persons appointed by the President, a Vice-President, a Minister, any other statutory body or by a Commission established by the Constitution;

"supply side reduction" means any combination of law enforcement actions, policies, measures and strategies aimed at the disruption of the production, distribution, trafficking and supply of harmful drugs and substances, and the curtailing of illicit financial flows and all other related criminal activities.

PART II

NATIONAL DRUG AND SUBSTANCE ABUSE CONTROL AND ENFORCEMENT AGENCY

3 Establishment of National Drug and Substance Abuse Control and Enforcement Agency

There is hereby established a body, to be known as the National Drug and Substance Abuse Control and Enforcement Agency, which shall be a body corporate capable of suing and being sued in its corporate name and performing all such acts as are necessary for or incidental to the carrying out of its functions under this Act.

4 Functions of Agency

(1) The Agency shall lead and coordinate efforts among MDAs and other public and private stakeholders with a view to mitigating, and ultimately eliminating, the scourge of the abuse of drugs and substances in Zimbabwe, and without derogating from the foregoing shall have the following functions—

(a) the implementation of actions, policies, measures, laws and strategies deriving from the national plan to address drug and substance abuse, for which purpose it shall combat the negative social impacts of the abuse of drugs and substances—

(i) by means of the following—

A. recommending, enabling and implementing preventative and educative measures to pre-empt the negative social impacts of the abuse of drugs and substances; and

B. enabling interventions of a social welfare character by assisting or complementing the efforts of stakeholders to provide psycho-social support, rehabilitation services, linkage with social protection services, vocational training skills, livelihood projects, and the reintegration of survivors of the abuse of drugs and substances; and

C. enabling interventions of a public health character, namely by the establishment of centres for the treatment, rehabilitation and detoxification of survivors of the abuse of drugs and substances;

and

(ii) conducting research and analysis to support anti-drug and substance abuse intervention efforts, and the development of public policies in that regard; and

(iii) facilitating effective exchange of scientific and technical information and the conduct of research geared towards the eradication the abuse of drugs and substances in general and of harmful drugs or substances in particular; and

(iv) collecting, collating and disseminating information for use by stakeholders in the control of harmful drugs and substances and the illicit use of precursors; and

(v) educating the public about dangers of drug and substance abuse and addiction;

and

(b) the enforcement of actions, policies, measures, laws and strategies, and the national plan, specifically by co-ordinating activities relating to the investigation and arrest of persons for offences connected with the production, processing, distribution and trafficking in harmful drugs or substances or their consumption, by taking the following measures among others—

(i) eliminating the import or export by land, water bodies or air of harmful drugs or substances;

(ii) establishing a security check point at each port of entry and port of exit;

(iii) destroying or disposing of harmful drugs or substances that have been seized or confiscated;

(iv) co-ordinating the combatting of harmful drug and substance activity with those MDAs sharing some statutory or administrative responsibility for the matter;

(v) strengthening (within and outside Zimbabwe) co-operation between law enforcement agencies, welfare institutions and bodies concerned with the eradication of or reduction in illicit dealings in harmful drugs or substances, the plants used in their production, and precursors;

(vi) collaborating with local and international law enforcement agencies to combat offences connected with the production, processing, distribution and trafficking in harmful drugs or substances or their production;

(vii) to gather intelligence that identifies trends and enhances control of new psychoactive substances;

(viii) to conduct research and analysis in support of enforcement efforts and policy development in relation to harmful drugs and substances and the abuse of drugs and substances.

5 Establishment of Divisions of Agency and their mandates

There are hereby established within the Agency the following divisions, having the following mandates—

(a) the Social Services Intervention Division, whose mandate shall be the carrying out the functions of the Agency set forth in section 4(1)(a), for which purpose it shall—

(i) design demand side reduction programs in accordance with section 12;

(ii) receive regular reports on the implementation of demand side reduction programmes;

(iii) use the information referred to in paragraph (ii) and any other information to which the Social Division may have access, in order to analyse, report upon, improve and, if necessary, redesign demand side reduction programmes;

(iv) monitor and ensure compliance with demand side reduction programmes;

(v) act as the central agency for the collection of data and statistics relevant to its mandate, and, in so doing, may require competent authorities to submit any such data or statistics in such manner and form as the Social Division directs;

(vi) disseminate the results of the analyses to relevant MDAs and if necessary to the Enforcement Division;

(vii) perform any other function conferred or imposed on the Social Division by or under this Act or any other enactment;

(b) the Enforcement Division, whose mandate shall be the carrying out the functions of the Agency set forth in section 4(1)(b), for which purpose it shall—

(i) undertake, on its own initiative or in co-ordination with the Police Service or other Security Services, enforcement of the laws relating to the suppression of the use of harmful drugs and substances and the abuse of drugs and substances, and in particular the investigation and arrest of persons suspected to be in breach of those laws;

(ii) have (without derogation from any other powers harmful drug enforcement officers have by virtue of the Police Act [*Chapter 11:10*], the Criminal Procedure and Evidence Act [*Chapter 9:07*] and any other enactment pertinent to law enforcement), all the powers vested in an inspector, customs officer or police officer under the Dangerous Drugs Act [*Chapter 15:02*]);

(iii) to perform any other function conferred or imposed on the Division by or under this Act or any other enactment.

6 Advisory Board of Agency: composition and functions

(1) There shall be an Advisory Board of the Agency consisting of the the Director General of the Agency and the following members—

(a) a chairperson appointed by the Minister with the approval of the President; and

(b) a representative of the intelligence services nominated by any director-general thereof and appointed by the Minister; and

(c) an employee of the Medicines Control Authority of Zimbabwe (MCAZ) nominated by the Director-General of MCAZ, and appointed by the Minister;

(d) an employee from each of the Ministries responsible for the following portfolios, nominated by the Minister responsible for that portfolio and appointed by the Minister—

(i) the Ministry of Health;

(ii) the Ministry of Public Service and Social Welfare;

(iii) the Ministry of Local Government;

(iv) the Ministry of Defence;

(v) the Ministry of Primary Education;

(vi) the Ministry of Home Affairs;

(vii) the Ministry of Justice Legal and Parliamentary Affairs;

(viii) the Ministry of Youth Empowerment, Development and Vocational Training;

(e) a member representing religious interests (for which purpose the Minister shall invite all religious bodies which the Minister considers to represent a significant number of followers of the faiths that are predominantly followed in Zimbabwe to each make a nomination, from which the Minister shall appoint one to be a member of the Board);

(f) a traditional leader (for which purpose the Minister shall invite the Minister responsible for Local Government to nominate a panel of names of traditional leaders from which the Minister shall appoint one traditional leader to be a member of the Board);

(g) a member representing civil society organisations (for which purpose the Minister shall invite any association which the Minister considers to represent a significant number of such associations, from which the Minister shall appoint one nominee to be a member of the Board).

(2) The Minister in making the appointments to the Board shall ensure that at least half the members of the Board are women, and that the appointments are generally and fairly representative of all of Zimbabwe's regions.

(3) The Minister shall designate one member to be the Deputy Chairperson, and in so doing shall ensure that the Deputy Chairperson is of the opposite gender to that of the Chairperson.

(4) The Deputy Chairperson shall preside at meetings of the Board at which the Chairperson is for any reason absent, and during any such absence, the Deputy Chairperson shall also discharge any function that by or under this Act is required to be discharged by the Chairperson.

(5) There shall be four statutory meetings of the Board in every calendar year, each to be held once in every period of three months, and any meeting called in addition to a statutory meeting shall be called in accordance with the procedure set forth in the First Schedule for the calling of extraordinary meetings.

(6) Eight (8) membership of the Board shall constitute a quorum.

(7) The term of office of a member of the Board shall be four (4) years, and a member's appointment shall only be renewable once.

(8) The terms and conditions of service of members of the Board shall be as specified in the First Schedule.

(9) The advisory board of the Agency has the following functions—

(a) on its own initiative or at the request of the Director- General to assist the Director-General in the discharge of his or her duties in terms of section 7 by making appropriate recommendations and offering helpful policy suggestions;

(b) at the request of the President or the Minister (as the case may be), to evaluate the performance by the Director-General of his or her functions and responsibilities under this Act when he or she is being considered for re-appointment; and

(c) to perform any other function assigned to it by or in terms of this Act.

(10) The Director-General is not bound by any recommendations made or advice given by the Board in terms of subsection (1)(a), but, at the request of the Board, he or she shall, in any annual or special report made in terms of 23 (as directed by the Board) make a report on the substance of any such recommendations or advice he or she has chosen not to follow in whole or in part, together with the reasons for not doing so.

7 Director-General of Agency

(1) There shall be a Director-General of the Agency who shall be appointed by the President in consultation with the Minister responsible for administering this Act.

(2) The Director-General of the Agency shall have the overall responsibility for managing the affairs of the Agency.

(3) In particular, the Director-General of the Agency shall be—

(a) responsible for—

(i) overseeing the discharge by the Agency of its statutory functions; and

(ii) providing leadership and strategic direction to the Agency; and

(iii) approving the Agency's common work programme and operations; and

(iv) approving the Agency's budget; and

(v) the submission of annual and other reports in terms of section 23; and

(vi) developing the national in accordance with subsection (10);

(vii) exercising any other functions that may be imposed or conferred upon him or her personally in terms of this Act or any other enactment;

and

(b) ultimately responsible for—

(i) implementing the policies of the Agency; and

(ii) managing the operations and property of the Agency; and

(iii) inquiring into and dealing with complaints and grievances made by or against the Agency or members, employees or agents of the Agency; and

(iv) exercising on behalf of the Agency the ancillary powers referred to in the Second Schedule; and

(v) exercising any other functions that may be imposed or conferred upon the Agency in terms of this Act or any other enactment.

(4) The Director-General shall discharge such of his or her functions as relate specifically to the mandates of the Divisions through the DDGs, who shall be subject to his or her direction and control.

(5) The Minister may, through the Director-General, give the Agency such general directions relating to the policy the Agency is to observe in the exercise of its functions that the Minister considers to be necessary in the national interest.

(6) The staff of the Divisions of the Agency appointed in terms of Parts III and IV shall carry out their duties under the direction and control of whichever Deputy Director-General is at the head of their Division, subject to such directions as the Director General may give to them through the appropriate Deputy Director-General.

(7) The Director-General shall hold office for a term of four years on such terms and conditions of service, as the President (in consultation with the Minister) shall fix on his or her appointment, and shall be eligible for reappointment to another term, on the same or on different terms and conditions of service.

(8) The provisions of the First Schedule relating to the appointment of members of the Board, their vacation of office, disqualification for appointment, dismissal and refilling of their vacancies shall also apply to the Director-General.

(9) The Treasury is hereby, in terms of section 41("Accounting authorities") (3) of the Public Finance Management Act [*Chapter 22:19*] (No. 11 of 2009), deemed to have approved the Director-General to be the accounting authority for the Agency for purposes under that Act:

Provided that the Treasury shall not withdraw such approval in terms of section 41(4) of that Act without first consulting the Minister and the Board.

(10) The Director-General must, in consultation with MDAs and relevant stakeholders, lead the development of the national plan, and present a copy of the same to the Minister for adoption by Cabinet (and if the Cabinet adopts the national plan, with or without amendment, the national plan becomes binding on all members and employees of the MDAs and relevant stakeholders with effect from the date of its adoption by Cabinet).

PART III

SOCIAL SERVICES INTERVENTION DIVISION

8 Appointment and functions of the Deputy Director-General (Social)

(1) The Public Service Commission shall employ an officer of the Agency to be called the Deputy Director-General (Social), whose functions shall be—

(a) to develop and implement strategies and plans for combating the social negative impact of the abuse of drugs and substances and the consumption of harmful drugs and substances; and

(b) to oversee the coordination of the Social Division, including the provision of treatment and rehabilitation services, the development of prevention programmes and the promotion of public awareness about the dangers of the abuse of drugs and substances and the consumption of harmful drugs and substances; and

(c) through the Director-General, advise the Minister on matters relating to the social impact of the abuse of drugs and substances and the consumption of harmful drugs and substances.

9 Professional members of staff of Social Services Intervention Division

(1) The professional staff of the Agency employed in the Social Division—

(a) shall consist of anti-drug and substance abuse intervention officers, who shall be members of the Public Service seconded to the Division by the Head of the Ministry from which they are seconded, and shall perform their duties under the direction and control of the Deputy Director-General of the Social Division, subject to the following conditions—

(i) service with the Agency shall be treated for all purposes as being continuous with service in the Ministry from which they have been seconded; and

(ii) a member of the Public Service who becomes a member of the professional staff of the Social Division shall be subject to the same responsibilities, discipline and penalties, as a member of the Public Service, and liable in respect of acts done or omitted to be done to the same extent as he or she would have been liable in the same circumstances if he or she were not seconded to the Social Division, and shall have the benefit of any indemnity to which a member of the Public Service would in the same circumstances be entitled;

(b) may consist of persons seconded from a statutory body, for which purpose the Agency may, through the DDG (Social), with the agreement of the governing organ of the statutory body in question, employ the persons so seconded to be an anti-drug and substance abuse intervention officers, subject to the following conditions—

(i) service with the Social Division shall be treated for all purposes as being continuous with service in statutory body from which they have been seconded; and

(ii) an employee of the statutory body who becomes a member of the professional staff of the Social Division, shall be subject to the same responsibilities, discipline and penalties, as a member of the statutory body in question, and liable in respect of acts done or omitted to be

done to the same extent as he or she would have been liable in the same circumstances if he or she were not seconded to the Social Division, and shall have the benefit of any indemnity to which a member of the statutory body would in the same circumstances be entitled.

10 Programmes for prevention of drug abuse

(1) The Social Division must, in consultation with relevant MDAs, facilitate the establishment of an MDAs' demand side reduction programme for the prevention of the abuse of drugs and substances and the consumption of harmful drugs and substances among members and employees of MDAs and relevant stakeholders.

(2) On the basis of the MDAs' demand side reduction programme and the stakeholder programmes, and by means of consultations with civic society organisations (CSOs) and other interested stakeholders, the Social Division must facilitate the establishment of a demand side reduction programme for the prevention of the abuse of drugs and substances and the consumption of harmful drugs and substances among members of the public at large.

(3) The MDAs' demand side reduction programme—

(a) together with the demand side reduction programme for the prevention of the abuse of drugs and substances and the consumption of harmful drugs and substances among members of the public at large, shall form part of the national plan;

(b) becomes binding on all members and employees of the MDAs and relevant stakeholders on the date when the national plan is adopted in terms of section 7(10).

(4) The purpose of the demand side reduction programmes referred to in subsections (1) and (2) is to prevent a person from using or continuing to use harmful drugs or substances or abuse drugs or substances; in particular, the programmes must focus on—

(a) preserving the family structure of the persons affected by drug or substance abuse or the consumption of harmful drugs or substances, and those who are dependent on such drugs or substances;

(b) creating awareness and educating the public on the dangers and consequences of the abuse of drugs and substances and the consumption of harmful drugs and substances;

(c) engaging young people in sports, arts and recreational activities and ensuring the productive and constructive use of leisure time.

11 Monitors and their powers

(1) There shall be among the professional staff of the Social Division persons called monitors to monitor the effectiveness and implementation of stakeholder plans.

(1) The Director-General, in consultation with the DDG (Social), may appoint any member of the Division's professional staff to be a monitor for the purposes of this Act.

(2) The DDG (Social) shall furnish each monitor with a certificate stating that he or she has been appointed as a monitor, and the monitor shall, on demand, exhibit the certificate to any person affected by the exercise of the monitor's powers.

(3) A monitor shall be responsible for monitoring, on site, compliance with this Act and any regulations, and evaluating the effectiveness of the implementation by any MDA, relevant stakeholder or obligated person of any demand side reduction programmes adopted by them (in this section called "demand side reduction stakeholders");

(4) For the purpose of evaluating the effectiveness of the implementation of any demand side reduction programme, a monitor shall have the right to access to any information, documentation or other evidence strictly related to the achievement of the targets set by the programme and the manner in which any public funding availed for the programme has been expended (hereinafter called "the monitor's mandate"); for which purpose a monitor—

(a) may enter premises of any demand reduction stakeholder, and after informing the person in charge or control of the premises of the purpose of his or her visit, may do any or all of the following—

(i) make such examination and inquiry as he or she considers appropriate to discharge his or her mandate;

(ii) to question any person who is employed in or at the premises to enable the monitor to discharge his or her mandate;

(iii) require any person who is employed in or at the premises to produce any book, account, notice, record, list or other document relevant to the monitoring of the demand side reduction programme;

(iv) require from any person an explanation of any entry made in any book, account, notice, record, list or other document found upon any person or premises referred to in subparagraph (iii);

(v) examine and make copies of any book, account, notice, record, list or other document relevant to the monitoring of the demand side reduction programme;

(vi) take possession of any book, account, notice, record, list or other document relevant to the monitoring of the demand side reduction programme:

Provided that such book, account, notice, record, list or other document shall be retained only so long as may be necessary for the purpose of discharging the monitor's mandate;

(b) shall be deployed by the Agency at the behest of any MDA or obligated person or entity to assist with the implementation of any demand side reduction programme.

(4) Every person whose premises have been entered in terms of subsections (3) and (4), and every employee or agent of that person in or on those premises shall forthwith provide the monitor and his or her assistants with whatever facilities the monitor may reasonably require for the exercise of the powers conferred on them by those subsections.

(5) Any person who—

(a) hinders or obstructs a monitor or his or her assistant in the discharge of his or her mandate; or

(b) without just cause, fails or refuses to comply with a lawful request of a monitor or his or her assistant in terms of this section;

shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

(6) A court convicting a person of failing to give information or to produce any document when required to do so under this section may require the person, within such period as the court may specify, to give the information or to produce the document, as the case may be.

12 Adoption of demand side reduction programmes

(1) In this section—

"target group" means the employees or students or subjects of an obligated person;

"focus area" means the workplace, community or premises for which an obligated person or entity is responsible.

(2) Every obligated person shall no later ninety (90) days after the date of commencement of this Act or no later than ninety (90) days after—

(a) commencing business in the case of an employer; or

(b) commencing operations in the case of a statutory body or learning institution;

either adopt a standard demand side reduction programme designed by the Agency (whether generally or specific to a type of obligated person) or design its own customised demand side reduction programme and submit it for approval to the DDG (Social) in accordance with this section.

(3) A customised demand side reduction programme shall, in addition to the elements for an MDAs' demand side reduction programme that may be relevant to their setting—

(a) give a detailed description of those activities of the obligated person that are most amenable to intervention within the focus area;

(b) describe in sufficient detail the nature of the interventions proposed, including mandatory or voluntary harmful drug and substance testing or screening, and psycho-social support (including education about harmful drugs and substances, and harmful drug or substance abuse counselling);

(c) give a detailed description of the management, employment and other policies in place or to be formulated to give effect to the programme;

(d) encourage and protect members of the target group who wish to report the trafficking and use of harmful drugs and substances, or the abuse of drugs and substances, in their focus area, while at the same time protecting the privacy of survivors of such use or abuse who belong to that target group.

(4) The Social Division shall examine every customised programme for its adequacy, in particular it may do any of the following—

(a) subject to subsection (5), approve the customised programme without amendment; or

(b) require the obligated person to submit an amended customised programme; or

(c) require the obligated person to provide such further information in connection with its customised programme before it is approved.

(5) The DDG (Social) may impose such conditions as he or she considers appropriate on his or her approval of any customised programme.

(6) Upon approving a customised programme, the DDG (Social) shall issue to the obligated person or entity a certificate in the prescribed form—

(a) stating the name and address of the obligated person;

(b) specifying the scope of the target group and focus area of the customised programme;

(c) stating the date by which the customised programme must commence (being not later than 30 days from the date of issuance of the certificate);

(d) stating the date of issue of the certificate and the date of its expiry; and

(e) setting out any conditions fixed by the DDG (Social) in terms of subsection (5); and

(f) setting out such other matters as may be prescribed.

(7) The DDG (Social) shall in coordination with the Chief's Council dispatch one or more monitors who, together with the appropriate secretaries for provincial affairs and devolution and district development coordinators, will facilitate consultations in any community headed by a traditional leader to devise a demand side reduction programme in accordance with this section.

(8) Upon completion of a demand side reduction programme for which a traditional leader is responsible, the traditional leader shall be issued with a certificate in accordance with subsection (6).

(9) Any obligated person or entity (other than a traditional leader) who contravenes provisions of this section shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for up to twelve months, or both.

(10) A certificate issued in terms of subsection (6) shall be valid for two years from the date of its issue:

Provided that, for good cause shown, the DDG (Social) may extend the validity of a certificate for not more than one year for a customised programme that has been commenced within the stipulated period but has not yet been completed.

13 Register of certificates

(1) The DDG (Social) shall maintain a register of certificates issued in terms of section 12(6), in which he or she shall record, in relation to each certificate—

(a) the customised programme or standard programme in respect of which the certificate was issued; and

(b) the obligated person to whom the certificate was issued; and

(c) the dates of issue and expiry of every certificate recorded in the register; and

(d) any conditions subject to which any certificates were issued; and

(e) any amendment, suspension or cancellation of any certificate recorded in the register; and

(f) such other particulars as may be prescribed.

(2) The register kept in terms of subsection (1) shall be open to inspection by members of the public at all reasonable times at the Director-General's office and on the official website of the Agency.

14 Guidelines for community social wellness services

(1) The Social Division, in consultation with relevant MDAs, must, consistently with its mandate—

(a) develop guidelines for the establishment of community social wellness services; and

(b) prescribe—

(i) national norms and standards for community-based services; and

(ii) the type of community-based services and the manner in which such services must be provided.

(2) The Social Division, in consultation with the provincial authorities responsible for health, education, sports and recreation, safety and security and local government in the province in question—

(a) develop an integrated provincial strategy for community-based services;

(b) from moneys appropriated for the province for that purpose, fund community-based services for the province that are related to its mandate;

(c) approve funding for community based services rendered by civic society organisations (CSOs) within the province in question, if such CSOs qualify for such funding by reference to the prescribed criteria and are registered in the prescribed manner for participation in the integrated provincial strategy for community-based services.

(3) The community-based strategy must target children and youth whether in and out of school, people with disabilities, older persons, families and communities in both rural and urban areas.

(4) Community structures must be involved and participate in the design and rendering of community-based services.

PART IV

ENFORCEMENT DIVISION

15 Appointment and functions of Deputy Director-General (Enforcement)

(1) The Public Service Commission shall employ an officer of the Agency to be called the Deputy Director-General (Enforcement), whose functions shall be—

(a) to develop, implement and oversee strategies and plans for—

(i) the investigation and arrest of persons for offences connected with the production, processing, distribution, trafficking in harmful drugs and substances; and

(ii) the implementation of enforcement of strategies to disrupt and dismantle drug trafficking organisations;

and

(b) to oversee the activities and operations of the Enforcement Division, including coordination of investigations, the collection and analysis of intelligence and the enforcement of operations; and

(c) with the leave of the Director-General—

(i) to represent the Enforcement Division at meetings convened by other government Ministries or agencies that have any connection with the functions of the Enforcement Division, and to represent the Agency when transacting any business with other law enforcement organisations within and outside Zimbabwe, and with international bodies having any connection with the functions of the Enforcement Division; and

(ii) to share with law enforcement agencies intelligence and knowledge of best practices in the field of harmful drug interdiction; and

(iii) to develop and maintain mutually beneficial relationships with international drug enforcement agencies; and

(iv) to lead and coordinate drug enforcement operations across domestic and international jurisdictions; and

(v) to advise the Minister/s responsible on matters relating to the enforcement of drug laws.

16 Composition of staff of Enforcement Division; overlapping investigations

(1) The DDG (Enforcement) may with the leave of the Director-General, co-opt members of the Police Service who shall be seconded to the Division by the Commissioner-General of Police, to become harmful drug and substance enforcement officers under the command of DDG (Enforcement), subject to the following conditions—

(a) service with the Enforcement Division shall be treated for all purposes as being continuous with service in the Police Service;

(b) a member of the Police Service who becomes a harmful drug and substance enforcement officer shall have the same powers functions and authority, and be subject to the same responsibilities, discipline and penalties, as a member of the Police Service, and be liable in respect of acts done or omitted to be done to the same extent as he or she would have been liable in the same circumstances if he or she were not seconded to the Enforcement Division, and shall have the benefit of any indemnity to which a member of the Police Service would in the same circumstances be entitled;

(c) the Director-General and Commissioner General of the Police Service shall ensure that harmful drug and substance enforcement officers—

(i) who are on secondment are subject to the effective control of the DDG (Enforcement); and

(ii) are rotated regularly between the Police Service and the Enforcement Division at specified intervals.

(2) The Director-General may, additionally, co-opt members of the other security services mentioned in section 207 of the Constitution who shall be seconded to the Enforcement Division by the Commander, Commissioner- General or Director General of that security service, to be under the command of the DDG (Enforcement), subject to the following conditions—

(a) service with the Enforcement Division shall be treated for all purposes as being continuous with the security service from which the member is seconded;

(b) a member of the security service who becomes a member a harmful drug and substance enforcement officer shall have the same powers functions and authority, and be subject to the same responsibilities, discipline and penalties, as a member of the Police Service, and liable in respect of acts done or omitted to be done to the same extent as he or she would have been liable in the same circumstances if he or she were not seconded to the Enforcement Division, and shall have the benefit of any indemnity to which a member of the Police Service would in the same circumstances be entitled;

(c) the Commander, Commissioner-General or Director General of the security service from which any member is being seconded shall ensure that personnel seconded to the Enforcement Division—

(i) are subject to the effective control of the DDG (Enforcement); and

(ii) are rotated regularly between the security service in question and the Enforcement Division.

(4) If at any time any investigation into a case involving the enforcement of a harmful drug or substance abuse law is being conducted or may be about to be conducted by both the Police and the Enforcement Division, then the DDG (Enforcement), upon becoming aware of this, may assert in writing to the Commissioner-General of the Police Service the Enforcement Division's sole or primary jurisdiction over the case in question, whereupon the police shall promptly cede their jurisdiction over the case, together with any documentation and property seized in connection therewith, to the Enforcement Division.

17 Assignment of Prosecutors to Enforcement Division

(1) The Deputy Director-General of Enforcement Division may, under the terms of a written memorandum of agreement between the Agency and the Prosecutor-General pursuant to section 5(3)(b) of the Criminal Procedure and Evidence Act [*Chapter 9:07*], receive on assignment under such terms as are mutually agreed between them (whether on secondment or otherwise) one or more prosecutors from the National Prosecuting Authority to undertake the prosecution of offences under any harmful drug and substance abuse enforcement law:

Provided that the ultimate responsibility for instituting and undertaking any criminal prosecution resulting from the Enforcement Division's investigations rests with the Prosecutor-General.

(2) A prosecutor assigned to the Enforcement Division shall exercise (subject to the specific instructions of the Prosecutor General) all or any of the rights and powers or perform all or any of the functions conferred upon by the Prosecutor General by section 259 of the Constitution, this Act or any other enactment, as they relate to criminal proceedings.

18 Declaration of additional harmful drugs or substances for purposes of law enforcement

(1) In addition to the definition of the term "dangerous drug" and "Scheduled drug" contained in the Criminal Law Code Act [*Chapter 9:23*] and the Dangerous Drugs Act [*Chapter 15:02*], and "harmful liquid" in the Harmful Liquids Act [*Chapter 9:10*], the Director-General of the Agency may from time to time in consultation with Medicines Control Authority of Zimbabwe (MCAZ), broaden the scope of those definitions by specifying by notice in the *Gazette* specific substances that will be deemed to be a "harmful drug or substance" for the purposes of this Act, and any reference to a dangerous drug, scheduled drug or harmful liquid in those Acts shall be deemed to include a "harmful drug" as defined by this section.

(2) No notice made by the Director-General of the Agency under subsection (1) shall have the force of law unless it is approved by the Minister and published in the *Gazette*.

19 Standard scale of fines and monetary penalties for offences in connection with abuse of harmful drugs and substances

(1) In this section—

"fine" means a monetary criminal penalty imposed by a criminal court;

"monetary penalty" means a sum of money leviable in respect of a civil default;

"standard scale of fines and monetary penalties" means the standard scale of fines and monetary penalties referred to in subsection (2), as amended or replaced from time to time.

(2) Subject to subsection (9), the standard scale of fines and monetary penalties prescribed under this section applies to this Act and the following Acts or part of an Act (meaning that the scale applies to such Acts or part of such Act to the exclusion of the standard scale of fines provided for in section 280 ("Standard scale of fines and amendment thereof") of the Criminal Law Codification and Reform Act [*Chapter 9:27*]) —

(a) Chapter VII ("Crimes Involving Dangerous Drugs") of the Criminal Law Codification and Reform Act [*Chapter 9:27*]; and

(b) the Dangerous Drugs Act [*Chapter 15:02*]; and

(c) the Harmful Liquids Act [*Chapter 9:10*]; and

(d) the Medicines and Allied Substances Control Act [*Chapter 15:03*]; and

(e) any other law which—

(i) is concerned with the investigation and punishment of offences involving the production, processing, distribution and trafficking in harmful drugs or substances or their consumption; and

(ii) is declared by the law in question to be a harmful drug and substance abuse enforcement law for the purposes of this Act.

(3) Subject to subsection (4) the Minister with the concurrence of the Minister responsible for justice, may publish a statutory instrument setting forth a standard scale of fines and monetary penalties, which shall specify—

(a) different levels of fines and monetary penalties, each level being designated by a number; and

(b) in respect of each level of fine or monetary penalty, the monetary amount of the fine.

(4) Subject to subsection (5) the Minister may with the concurrence of the Minister responsible for justice, by statutory instrument, amend or replace the standard scale of fines and monetary penalties, whenever the Minister considers such an amendment or replacement to be necessary as a result of a change in the purchasing power of money or for any other reason:

Provided that—

(i) an increase in the monetary amount corresponding to any level in the standard scale of fines and monetary penalties shall not have the effect of increasing the fine or the monetary penalty to which any person is liable in respect of an offence or civil default committed before the increase came into effect;

(ii) a reduction in the monetary amount corresponding to any level in the standard scale of fines or monetary penalties shall reduce the fine or monetary penalty to which any person is liable in respect of an offence committed before the reduction came into effect, if the penalty is imposed after that date.

(5) Where a harmful drug and substance abuse enforcement law provides that a person who is guilty of an offence or civil default is liable to a fine or a maximum fine or monetary penalty by reference to a level on the standard scale, the amount of the fine or monetary penalty or the maximum fine, as the case may be, that may be imposed shall be fine or the monetary amount specified in respect of that level in the standard scale of fines.

(6) Notwithstanding any other provision of this section, whenever—

(a) a court imposes a sentence of a fine upon an offender, the court shall specify the monetary amount of the fine and shall not specify the fine by reference to a level on the standard scale of fines;

(b) the Agency imposes a monetary penalty upon a defaulter, the civil penalty order containing the monetary penalties imposed by the Agency shall specify the monetary amount of the monetary penalty and shall not specify the penalty by reference to the standard scale of fines.

(7) The Third Schedule incorporates the standard scale of fines and levels of monetary penalties applicable to every harmful drug and substance abuse enforcement law, as amended or replaced from time to time under this section.

(8) When the Minister wishes, in accordance with subsection (4), to amend or replace the Second Schedule, the Minister shall lay the draft statutory instrument amending or replacing the Second Schedule before the National Assembly, and if the National Assembly makes no resolution against publication of the draft statutory instrument within fourteen sitting days from the date when it was laid before the National Assembly, that the Minister may at any time thereafter publish it as a statutory instrument in the *Gazette*.

(9) Until such time as the first the standard scale of fines and monetary penalties prescribed under this section is published, the standard scale of fines that is in force under section 280 ("Standard scale of fines and amendment thereof") of the Criminal Law Codification and Reform Act [*Chapter 9:27*] shall continue to apply to every harmful drug and substance abuse enforcement law.

PART V

Accounts and Finance

20 Funds of Agency

(1) The funds of the Agency shall consist of—

(a) such moneys as may be payable to the Agency from moneys appropriated for the purpose by Parliament;

(b) such portion as shall be determined by the Minister responsible for Finance in each fiscal year of the cash and other monies realised by the sale of any assets forfeited in terms of the Money Laundering and Proceeds of Crime Act [*Chapter 9:24*] at the instance of the Enforcement Division, and paid out from the Recovered Assets Fund referred to in Chapter VI of that Act;

(c) any donations or grants to the Agency which have been approved by the Minister;

(d) such other moneys or assets as may vest in or accrue to the Agency, whether in the course of its operations or otherwise.

(2) The Agency shall apply its funds to the fulfilment of its functions and shall further observe the public finance management principles established in terms of section 298 of the Constitution.

21 Accounts of Agency and appointment of internal auditor

(1) The Agency shall ensure that proper accounts and other records relating to such accounts are kept in respect of all the Agency's activities, funds and property, including such particular accounts and records as provided for by the Public Finance Management Act [*Chapter 22:*19].

(2) As soon as possible after the end of each financial year, the Agency shall prepare and submit to the Minister a statement of accounts in respect of that financial year or in respect of such other period as provided for by the Public Finance Management Act [*Chapter 22:*19].

(3) Section 80 of the Public Finance Management Act [*Chapter 22:19*], shall apply, with such changes as may be necessary, to the appointment of an Internal Auditor to the Agency in all respects as if the Agency were a Ministry or a department of a Ministry.

(4) The Agency shall apply its funds to the fulfilment of its functions and shall further observe public finance management principles established in terms of section 298 of the Constitution.

22 Audit

(1) The Agency shall cause its books of accounts to be audited once a year.

(2) The accounts of the Agency shall be audited by the Auditor-General, who for that purpose shall have the functions conferred on him or her by sections 7 and 8 of the Audit Office Act [*Chapter 22:18*].

(3) Any person under the authority or supervision of the Agency who refuses to provide the Auditor-General with an explanation or information required by him or her for the purposes of an audit or knowingly provides the Auditor-General with a false explanation or information, or an explanation or information that the person has no grounds for believing to be true, shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

23 Reports of Director-General

(1) The Director-General shall, as soon as possible after the end of each financial year, submit an annual report on the operations of the Agency to the Minister.

(2) In addition to the report referred to in subsection (1), the Director-General—

(a) shall submit to the Minister any other report, and provide him or her with any other information, that the Minister may require in regard to the operation of the Agency; and

(b) may submit to the Minister any other report that the Director-General considers desirable.

(3) The Minister—

(a) shall table before Parliament every annual report submitted to him or her by the Director-General in terms of subsection (1); and

(b) may table before Parliament any report submitted to him or her by the Director-General in terms of subsection (2).

PART VI

Joint and Separate Meetings of Divisions and Strategic Plan

24 Divisional and joint meetings of Divisions of Agency and strategic plans

(1) In this section—

"management team", in reference to the Social Division and the Enforcement Division, means a team headed by the Deputy Director-General of the Division or his or her delegate concerned and not more than ten (10) of the most senior members of the professional and administrative staff of that Division.

(2) Each Deputy Director-General may, on notice to the Director-General, or shall, on the instruction of the Director-General, convene a divisional meeting of the management team of his or her Division for any purpose connected with the operation of the Division.

(3) Director-General shall convene a joint meeting between the management teams of the Social Division and the Enforcement Division at least twice a year to ensure effective coordination and collaboration in addressing issues of common concern to the Divisions.

(4) Every joint meeting of the management teams of the Social Division and the Enforcement Division shall be conducted in accordance with the following provisions—

(a) the Director-General shall chair the meeting, and the vice- chairpersonship of the meeting shall alternate between the DDG (Social) and DDG (Enforcement), with the DDG (Social) being the vice-chairperson of the first meeting of the year;

(b) any question that requires to be resolved at the meeting shall be resolved by consensus of all members present, and in the absence of a consensus, the matter shall be determined by the Director-General;

(c) the procedure at the meetings of the management teams shall be as nearly as possibly set forth in the First Schedule;

(d) a joint meeting of the management teams may agree on any joint resolution or joint programme of action to achieve any objective of a common concern to them both, and such joint resolutions or joint programme shall, subject to section 7(4), be binding on each Deputy Director-General;

(e) minutes of each meeting, signed as correct by the Director-General or (in the absence of the Director-General at any meeting) by the vice-chairperson presiding at the meeting concerned, shall be kept and made available to both Divisions.

(5) At the joint meetings, the Agency shall—

(a) formulate a five-year strategic plan setting out the manner in which the Agency proposes to perform its functions; and

(b) review and revise the strategic plan on an annual basis.

(6) A strategic plan, or a revision of a strategic plan, shall have no effect until approved by the Minister.

(7) The first strategic plan shall be submitted to the Minister within six (6) months after the setting up of the Agency, and subsequent strategic plans must be submitted to the Minister within three (3) months of the preceding strategic plan or

such longer or shorter time frame as the Minister may in writing to the Director-General allow.

25 Invited members at divisional and joint meetings

(1) The Agency may, through the Director-General or a Deputy Director-General presiding at the meeting concerned, invite persons to participate on a non-voting basis in any divisional meetings or joint meetings of the Agency, if and when the need arises.

(2) A person invited under subsection (1) must be an expert, or have special knowledge or experience, in the field of harmful drugs or substances or the abuse of drugs or substances, or must be able to avail his or her expertise, knowledge or experience in whatever other field to provide informed advice to the Agency on any matter being considered by it at the meeting concerned.

PART VII

GENERAL

26 Decentralisation of Agency

(1) The Agency shall within a reasonable time establish provincial and district offices of the Agency, as determined by the Director General.

(2) A provincial or district office shall be staffed by professional and administrative employees of the appropriate Division.

(3) A provincial or district office shall perform such of the functions of the Agency in the province or district as the Director General shall determine.

27 Administrative staff of Divisions

Subject to this Act, the Public Service Commission, in consultation with the Director-General, shall employ such administrative staff of both Divisions and assign employees to them as he or she considers necessary for the efficient conduct of the work of the Agency and of both its Divisions.

28 Professional members under contract

(1) The Public Service Commission may engage as employees of the Divisions persons under contract for a fixed term, on such conditions as it may prescribe, not being more favourable than the conditions applicable to seconded employees of the Divisions of equivalent rank (unless the Public Service Commission is satisfied that the contract in question is for the engagement of a person having exceptional expertise of benefit to the Division in question).

(2) Upon the termination of a contract entered into in terms of subsection (1), the person under contract shall cease to be an employee of the Division, unless the contract is renewed or he or she is engaged under the contract in some other capacity in either of the Divisions.

29 Serving allowance for seconded staff

The Agency shall, with the concurrence of the relevant Service Commission, fix a monthly amount to be payable to the seconded staff of the Agency in addition to the remuneration they earn as members of the Public Service, the Zimbabwe Republic Police, the Defence Forces, or the President's Department, as the case may be.

30 Immunity

The Agency, the Board, a committee established by the Agency under the First Schedule, any member of the Board or a committee, the Director-General, a Deputy Director-General and any member of staff of the Agency or its Divisions, shall not be held liable for any action, suit, proceeding, dispute or challenge in any court, tribunal or any other adjudicating body for or in respect of any act or omission done in good faith and or without gross negligence in the exercise of his, her or its functions under this Act.

31 Regulations

(1) The Minister, after consultation with the Agency, may make regulations providing for all matters which by this Act are required or permitted to be prescribed or which, in his or her opinion, are necessary or convenient to be prescribed in order to carry out or give effect to this Act.

(2) Regulations made under this section may prescribe for any contraventions thereof—

(a) criminal penalties not exceeding a fine of level 14 or imprisonment for a period of five years or both such fine and such imprisonment;

(b) civil penalties of a prescribed amount leviable by the Authority for each day during which a contravention continues, not exceeding a prescribed number of days:

Provided that the Agency shall have power to waive the payment or refund the whole or part of any penalty prescribed under this paragraph if it is satisfied that the contravention was not wilful, or not due to the want of reasonable care;

(c) that any breach of a regulation may be specified to be a criminal offence or a civil default or both, and where the breach is specified to be both, the processing of the civil default shall be pursued independently or alongside the prosecution of the offence.

(3) A civil penalty prescribed under subsection (2)(*b*) shall constitute a liquidated debt due to the Agency by the person against whom it is levied, and shall at any time after it becomes due, be recoverable in a court of competent civil jurisdiction by proceedings in the name of the Agency.

PART VIII

Amendment of Other Acts

32 Amendment of section 37A of Cap 9:24

Section 37A ("Interpretation in Chapter IIIA") (1) of the Money Laundering and Proceeds of Crime Act [*Chapter 9:24*] is amended in the definition of "enforcement authority" by the insertion of the following paragraph (b)—

"(c) the Enforcement Division of the National Drug and Substance Control Abuse Agency established by the National Drug and Substance Control Abuse Agency Act.".

33 Amendment of Cap 9:23

The Criminal Law (Codification and Reform) Act [*Chapter 9:23*] is amended—

(a) in section 155 ("Interpretation in Chapter VII") by the repeal of the definition "dangerous drug" and the substitution of—

"dangerous drug" means—

(a) any coca bush, coca leaf, raw opium or cannabis plant other than industrial hemp;

(b) prepared opium, prepared cannabis or cannabis resin;

(c) a scheduled drug as defined in section 13 the Dangerous Drugs Act [*Chapter 15:02*];

(d) a harmful drug or substance declared as such in terms of section 18 of the National Drug and Substance Abuse Control and Enforcement Agency Act, 2025;";

(b) by the insertion of the following section after section 160—

"160A Presumptions Applicable to this Chapter

(1) A dangerous drug shall be deemed for the purposes of this Chapter to be in the possession of any person if—

(a) it is in or upon any land or premises occupied by him or her, or that is used or controlled by him or her; or

(b) it is in any vehicle, vessel or aircraft owned, leased, chartered or controlled by him or her or in any other way under his or her charge or control; or

(c) it is in any baggage carried by him or her, or belonging to another person but in his or her custody, or belonging to him or her but in another person's custody,

unless he or she shows on a balance of probabilities that he or she was unaware—

(i) that the dangerous drug was in or upon the land, premises, vehicle, aircraft or baggage in question, or

(ii) that the substance in question was a dangerous drug.

(2) If a dangerous drug is found on the person of any suspect, or in any bag or other receptacle whatsoever being carried by him or her, it shall be presumed (unless the suspect shows otherwise on a balance of probabilities) that he or she was aware of the contents of the bag or receptacle or that the contents of the bag or receptacle included a dangerous drug.

(3) If any person found in possession of any dangerous drug in excess of the amount that may be consumed by that person, or in circumstances that give rise to a reasonable suspicion that the person is trafficking or preparing to traffic in that dangerous drug, he or she bears the burden, on a balance or probabilities, of showing that the substance in question was for his or her personal consumption or use.".

FIRST SCHEDULE (*Sections 6, 7, 23, 28*)

Appointment of members of Board

1. In the appointment of members of the Board in terms of this Act, the Minister shall observe the provisions of sections 17, and 18 of the Constitution.

Terms of office and conditions of service of members

2. (1) Subject to section 320 of the Constitution, a member shall hold office for a term of four years which may be renewable for one additional term only.

(2) Subject to paragraph 9, a Member shall hold office on such terms and conditions as the Minister may fix.

(3) A member shall vacate his or her office on expiry of the period for which the Member has been appointed.

The term of office of the members may be renewable subject to section 340 of the Constitution. Additional disqualification grounds for appointment as member.

Additional disqualifications grounds for appointment as a member

3. Subject to section 320 (3) of the Constitution no person shall be appointed as a member and no person shall be qualified to hold office as a member who—

(a) is not a citizen of Zimbabwe or ordinarily resident in Zimbabwe; or

(b) has financial interest in any business connected with the provision of services to the Agency, or is engaged in any activity connected with any such service, or is married or connected to or associated with a person who has such an interest or is engaged in such an activity, unless the Minister is satisfied that the interest or activity will not interfere with the person's impartial discharge of his or her duties as a member; or

(c) has, in terms of a law in force in any country—

(i) been adjudged or otherwise declared insolvent or bankrupt and has not been rehabilitated or discharged; or

(ii) made an assignment to, or arrangement or composition with, his or her creditors which has not been rescinded or set aside; or

(d) has, within the period of five years immediately preceding the date of his or her proposed appointment, been convicted—

(i) in Zimbabwe, of an offence; or

(ii) outside Zimbabwe, in respect of conduct which, if committed in Zimbabwe, would constitute an offence; and sentenced to a term of imprisonment exceeding six months imposed without the option of a fine, whether or not any portion has been suspended, and has not received a free pardon.

Vacation of office by member.

4. A member shall vacate his or her office and his or her office shall become vacant—

(a) three months after the date upon which he or she gives notice in writing to the Minister of his or her intention to resign, or on the expiry of such other period of notice as he or she and the Minister may agree; or

(b) if he or she becomes disqualified in terms of paragraph 3 to hold office as a member.

Filling of vacancies of Board

5. Subject to this Act, on the death of, or vacation of office by a member, the Minister shall appoint a qualified person to fill the vacancy:

Provided that if as a result of the vacancy, the number of members falls below the minimum number specified in paragraph 7, the Minister shall fill the vacancy as soon as is practically possible.

Chairperson and Vice Chairperson of Advisory Board

6. (1) The Vice-Chairperson of the Board shall perform the Chairperson's functions whenever the Chairperson is, for any reason, unable to perform them.

(2) The Chairperson or Vice-Chairperson of the Agency may at any time resign his or her office as such by one month's notice in writing to the Minister.

(3) Whenever the office of Chairperson of the Board falls vacant, the Minister shall fill the vacancy within three months.

(4) Whenever the office of Vice-Chairperson of the Board falls vacant, the Minister shall fill the vacancy within three weeks.

Meetings and procedure of the Advisory Board

7. (1) The Board shall hold its first meeting on such date and at such place as the Minister may fix, being not more than three months after the fixed date, and thereafter the Board shall meet for the dispatch of business four times per year.

(2) The Chairperson of the Board may at any time convene a special meeting of the Board.

(3) The Chairperson shall send written notice of any special meeting convened in terms of subparagraph (2) to each member not later than seven days before the meeting and shall specify the business for which the meeting has been convened:

Provided that if, in the opinion of the Chairperson, as the case may be, the urgency of the business for which the meeting is to be convened so requires, notice of not less than forty-eight hours may be given.

(4) No business shall be discussed at a special meeting convened in terms of subparagraph (2) other than—

(a) such business as may be determined by the Chairperson of the Board, where the Chairperson has convened the meeting in terms of subparagraph (2); or

(b) the business specified in the request for the meeting, where the Chairperson has convened the meeting in terms of subparagraph (3).

(5) The Chairperson or, in his or her absence, the Vice-Chairperson shall preside at all meetings:

Provided that, if the Chairperson and the Vice-Chairperson are both absent from a meeting, the members present may elect one of their number to preside at that meeting as Chairperson.

(6) For any meeting of the Board, twenty-five percent members shall form a quorum.

(7) All acts, matters or things authorised or required to be done by the Agency may be decided by a majority vote at a meeting of the Board at which a quorum is present.

(8) Subject to subparagraph (9), at all meetings of the Board each member present shall have one vote on each question and, in the event of an equality of votes, the Chairperson shall have a casting vote in addition to a deliberative vote.

(9) Any proposal circulated among all members and agreed to in writing by a majority of all members shall have the same effect as a resolution passed at a duly constituted meeting of the Board and shall being corporated in the minutes of the next succeeding meeting:

Provided that, if a member requires that such proposal be placed before a meeting of the Board this subparagraph shall not apply to such proposal.

Committees of Board

8. (1) For the better exercise of its functions, the Board may establish one or more committees in which it may vest any of its functions as it considers appropriate:

Provided that the vesting of a function in a committee shall not prevent the Board from itself exercising that function, and the Board may amend or rescind any decision of the committee in the exercise of that function.

(2) The Board may appoint to a committee persons other than members.

(3) The Chairperson of the Board or of a committee may at any reasonable time and place convene a meeting of that committee.

(4) The procedure of each committee shall be as fixed from time to time by the Agency.

(5) Subject to this paragraph, paragraph 7(2), (3), (4), (5), (7), (8) and (9) shall apply, with any necessary changes, to committees and their members as they apply to the Board and its members.

(6) The quorum for any committee of the Agency shall be at least half the members of that committee.

Remuneration and expenses of members

9. (1) Members shall be paid—

(a) such remuneration, if any, as the Minister, may from time-to-time fix; and

(b) such allowances, if any, as the Minister in consultation with the Minister responsible for Finance, may from time to time fix to meet any reasonable expenses incurred by members in connection with the business of the Board.

(2) The salary, allowances and other benefits payable to a member shall not be reduced during his or her tenure of office.

Members to disclose certain connections and interests

9. (1) In this paragraph—

"relative", in relation to a member, means the member's spouse, child, parent, brother or sister.

(2) Subject to subparagraph (3)—

(a) if a member—

(i) knowingly acquires or holds a direct or indirect pecuniary interest in any matter that is under consideration by the Board; or

(ii) owns any property or has a right in property or a direct or indirect pecuniary interest in a company or association of persons which results in the member's private interests coming or appearing to come into conflict with his or her functions as a member; or

(iii) knows or has reason to believe that a relative of his or hers—

A. has acquired or holds a direct or indirect pecuniary interest in any matter that is under consideration by the Board; or

B. owns any property or has a right in property or a direct or indirect pecuniary interest in a company or association of

persons which results in the member's private interests coming or appearing to come into conflict with his or her functions as a member; or

(b) if for any reason the private interests of a member come into conflict with his or her functions as a member;

the member shall forthwith disclose the fact to the Board.

(3) A member referred to in subparagraph (2) shall take no part in the consideration or discussion or, or vote on, any question before the Board which relates to any contract, right, immovable property or interest referred to in that subparagraph

(4) Any member who knowingly and without lawful cause contravenes subparagraph (2) shall be guilty of an offence and liable to a fine not exceeding level 4 or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

Validity of decisions and acts of Board

11. No decision or act of the Board or act done under the authority of the Board shall be invalid on the grounds that—

(a) the Board consisted of fewer than the minimum number of persons specified in paragraph 7 (6); or

(b) a disqualified person acted as a member at the time the decision was taken or act was done or authorised:

Provided that the Board shall ratify any such decision or action as soon as possible after it becomes aware that the decision or action was taken in the circumstances described in subparagraph (a) or (b).

Minutes of proceedings of Board

12. (1) The Board shall cause minutes of all proceedings of and decisions taken at every meeting to be entered in books kept for the purpose.

(2) Any minutes referred to in subparagraph (1) which purport to be signed by the person presiding at the meeting to which the minutes relate or by the person presiding at the next following meeting of the Board or the committee concerned, as the case may be, shall be accepted for all purposes as *prima facie* evidence of the proceedings of and decisions taken at the meeting concerned.

Execution of contracts and instruments by the Board

13. Any agreement, contract or instrument approved by the Board may be entered into or executed on behalf of the Board by any persons generally or specially authorised for that purpose.

SECOND SCHEDULE (*Section*)

ANCILLARY POWERS OF AGENCY

1. To acquire by lease, purchase or otherwise, immovable property, and to construct buildings thereon.

2. To enter into agreements and to modify or rescind such agreements:

Provided that the Agency shall not enter into agreements of suretyship or guarantee without the approval of the Minister and the Minister responsible for finance.

3. To accept a grant, donation or bequest of movable property, including money, made to the Agency:

   Provided that if a grant, donation or bequest referred to in this paragraph—

   (a) is made subject to any conditions; or

   (b) would involve additional or recurrent expenditures on the part of the Agency;

the Agency shall not accept the grant, donation or bequest without the consent of the Minister and the Minister responsible for finance.

4. To do anything for the purpose of improving the skill, knowledge or usefulness of its employees, and in that connection to provide or assist other persons in providing facilities for training, education and research and to pay for the aforesaid, where necessary.

5. To provide such services as the Agency considers could properly be provided by the Agency.

6. Generally, to do all such things as are incidental or conducive to the exercise of the functions or the performance of the duties of the Agency or which are incidental to the powers specified in this Schedule, or which are calculated, directly or indirectly, to enhance the value of, or develop, the services provided by the Agency.

THIRD SCHEDULE (*Section 19*)

STANDARD SCALE OF FINES

Level	Monetary Amount US$ or ZiG equivalent
1	50
2	75
3 (Spot fine level)	200
4	750
5	1000
6	2500
7	4000
8	6000
9	10 000
10	15 000
11	20 000
12	50 000
13	75 000
14	100 000